

Shahina Parveen v. U.P. Electricity Regulatory Commission

High Court of Judicature at Allahabad · Division Bench · 23 July 2018 · Writ - C No. 24460 of 2018 · **Writ disposed; fresh connection application to be considered in accordance with law.**

HEADNOTE

A tenant whose new-connection application was returned without reasons sought mandamus under clauses 4.4 and 4.5 of the U.P. Electricity Supply Code, 2005. Without deciding entitlement, the High Court disposed of the writ, directing a fresh application to the Executive Engineer and requiring that officer to consider and decide it in accordance with law by a speaking order within two weeks.

FACTUAL SUMMARY

Shahina Parveen occupied a tenanted shop at Millat Market, Dalmandi Road, Varanasi. On 15 May 2018 she applied for an electricity connection in her own name; the licensee returned the form without reasons. She alleged that about 100 tenants occupied the house and nearly 80 already had connections. She sought mandamus to process the application and grant supply under clauses 4.4 and 4.5 of the U.P. Electricity Supply Code, 2005. Counsel for the licensee stated that a fresh application would be entertained in accordance with law.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

tenant/occupier new connection

HOLDING

Mandamus to compel a tenant's new connection under clauses 4.4 and 4.5 was not granted on merits. The Court directed the petitioner to apply afresh to the Executive Engineer with supporting papers, and directed that authority to consider and decide the application in accordance with law by a speaking order within two weeks of receipt. ¶ 1

PRINCIPLE TAGS

clause-4.4-occupant-connection-on-indemnity-bond A tenant whose new-connection application was returned without reasons sought mandamus under clauses 4.4 and 4.5 of the U.P. Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE TENANT WAS ENTITLED TO A NEW CONNECTION UNDER CLAUSES 4.4 AND 4.5, AND WHETHER RETURN OF THE 15 MAY 2018 APPLICATION WAS UNLAWFUL

The Court did not examine occupancy, indemnity, owner consent, or the lawfulness of returning the form; it only directed a fresh application to be considered in accordance with law. ¶ 1